

- (4) For the purposes of subregulation (3), the angle may be swung to not less than 35° from the plane of the wall containing the window.
- (5) If the window referred to in subregulation (3) is above ground floor level, then for the purposes of that subregulation, the fence height is to be measured from the floor level of the room containing the window.
- (6) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

95 Fences and solar access to existing north-facing habitable room windows

- (1) This regulation applies if—
 - (a) a fence more than 2 m in height is to be constructed on an allotment; and
 - (b) a north-facing habitable room window or part of a window of an existing dwelling on an adjoining allotment is—
 - (i) within 3 m of a boundary of the allotment on which the fence is to be constructed; and
 - (ii) oriented towards the boundary; and
 - (iii) situated below the height of the fence being constructed.
- (2) The proposed fence must be set back from the boundary not less than the distance specified in Table 95 for a distance of 3 m from the edge of each side of the window or that part of the window that is within 3 m of the boundary.

Table 95—Setbacks from north-facing habitable room windows

<i>Fence height at any point</i>	<i>Minimum setback from side or rear boundary at that point</i>
3.6 m or less	1 m
More than 3.6 m but not more than 6.9 m	1 m plus an additional distance calculated at the rate of 600 mm for every metre of height over 3.6 m
More than 6.9 m	3 m plus an additional distance calculated at the rate of 1 m for every metre of height over 6.9 m

- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

96 Fences and overshadowing of recreational private open space

- (1) A fence more than 2 m in height must not reduce the sunlight to a recreational private open space of an existing dwelling on an adjoining allotment to the extent that less than the required minimum area of the recreational private open space has less than 5 hours of sunlight between 9 a.m. and 3 p.m. on 22 September.
- (2) If a fence is to be constructed on an allotment and the existing amount of sunlight to a recreational private open space on an adjoining allotment is less than the amount required under subregulation (1), the amount of sunlight to that area must not be further reduced by the construction of the fence.

- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.
- (4) In this regulation the *required minimum area* of a recreational private open space is the lesser of—
 - (a) 75% of the recreational private open space; and
 - (b) 40 m² with a minimum dimension of 3 m.

97 Masts, poles etc.

- (1) A mast, pole, aerial, antenna, chimney, flue or service pipe—
 - (a) when attached to a building, must not exceed a height of 3 m above the highest point of the roof of the building; or
 - (b) when not attached to a building, must not exceed 8 m above the ground level.
- (2) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

Part 6—Projections beyond street alignment

98 Projections beyond street alignment

Except where otherwise provided in this Part, a building must not project beyond the street alignment.

99 Architectural features—narrow street

- (1) An architectural feature of a building on a narrow street must not project beyond the street alignment.
- (2) Despite subregulation (1), an architectural feature may project beyond a narrow street no more than 240 mm horizontally beyond the street alignment and at a height of at least 2.7 m above the level of the street if—
 - (a) any footpath or kerb forming part of the street is not more than 240 mm in height above the street level; and
 - (b) the architectural feature is constructed from non-combustible material.

100 Architectural features—medium street

An architectural feature of a building on a medium street must not project beyond the street alignment unless the architectural feature—

- (a) projects no more than 600 mm horizontally beyond the street alignment; and
- (b) is at least—
 - (i) 5 m in height above any part of the street that may be used by a motor vehicle; or
 - (ii) 2.7 m in height above the level of the street in any other case; and

- (c) is constructed from non-combustible material.

101 Architectural features—wide street

An architectural feature of a building on a wide street must not project beyond the street alignment unless the architectural feature—

- (a) projects no more than 1.2 m horizontally beyond the street alignment; and
- (b) is at least—
 - (i) 5 m in height above any part of the street that may be used by a motor vehicle; or
 - (ii) 2.7 m in height above the level of the street in any other case; and
- (c) is constructed from non-combustible material.

102 Windows and balconies

- (1) A window or balcony must not project beyond the street alignment—
 - (a) of a narrow street; or
 - (b) of a medium street.
- (2) A window or balcony must not project beyond the street alignment of a wide street—
 - (a) more than 1 m horizontally; and
 - (b) at a height less than—
 - (i) 5 m above any part of the street that may be used by a motor vehicle; or
 - (ii) 3 m above the level of the street in any other case; and
 - (c) within 1.2 m of the side boundary of an adjoining allotment.

103 Verandahs

A verandah must not project beyond the street alignment unless the verandah—

- (a) is set back at least 750 mm from the kerb; and
- (b) is at a height of at least 3 m above the level of the street.

104 Sunblinds and awnings

A sunblind or awning must not project beyond the street alignment—

- (a) more than 2·4 m horizontally; and
- (b) at any height less than—
 - (i) 5 m above any part of the street that may be used by a motor vehicle; or
 - (ii) 2·4 m above the level of the street in any other case.

105 Service pipes, rainwater heads and service installations

A service pipe, rainwater head or service installation must not project beyond the street alignment—

- (a) more than 200 mm horizontally in the case of a service pipe; and
- (b) more than 300 mm horizontally in the case of a rainwater head or service installation; and
- (c) at any height less than 2·7 m above the level of the street.

106 Window shutters

Window shutters may project horizontally not more than 50 mm beyond the street alignment when in the fully open position.

107 Signs

A sign or similar Class 10b structure must not project beyond the street alignment unless the sign or structure—

- (a) is set back at least 750 mm from the kerb;
and
- (b) is at a height of at least 2·7 m above the level of the street.

108 Service cabinet doors

- (1) A service cabinet door must not project beyond the street alignment more than 600 mm when in the fully open position.
- (2) In this regulation, *service cabinet* means a cabinet or cupboard containing a meter, electrical equipment, water connections, fire equipment or other similar equipment.

109 Report and consent required

- (1) The report and consent of the relevant council must be obtained to an application for a building permit to construct any of the following parts of a building if the part projects beyond the street alignment at a different height or distance to that specified in this Part—
 - (a) an architectural feature;
 - (b) a window;
 - (c) a balcony;
 - (d) a verandah;
 - (e) a sunblind;
 - (f) an awning;
 - (g) a service pipe;
 - (h) a rainwater head;
 - (i) a service installation;

- (j) a window shutter;
 - (k) a sign or similar Class 10b structure;
 - (l) a service cabinet door.
- (2) The report and consent of the relevant council must be obtained to an application for a building permit to construct a building if any part of the building not specified in subregulation (1) would project beyond the street alignment.
- (3) The relevant council may give its consent under subregulation (1) or (2) if it considers that the projection of the part of the building beyond the street alignment will not be detrimental to the safety of the public.
- (4) Despite subregulations (1) and (2), the report and consent of the relevant council under subregulation (1) or (2) need not be obtained to an application for a building permit if—
- (a) a planning permit is required for the construction of the building; and
 - (b) the relevant planning scheme regulates the projection of part of a building beyond the street alignment of the same class of part of building referred to in subregulation (3).

110 Footings adjoining boundaries are permissible

- (1) A footing may support a party wall.
- (2) A footing may extend beyond the boundaries of a street alignment—
- (a) to a distance of not more than 300 mm if the highest projecting part of the footing is at a depth of at least 450 mm but less than 3 m below the level of the street; or

- (b) to a distance of not more than 1 m if the highest projecting part of the footing is at a depth of at least 3 m below the level of the street.

Part 7—Protection of adjoining property and the public

Division 1—Protection of adjoining property by means of protection work

111 Required protection work

- (1) Protection work must be provided by the owner, in relation to an adjoining property, before and during the carrying out of any building work, if the relevant building surveyor determines that protection work is required.
- (2) The relevant building surveyor must determine whether protection work is required as a result of proposed building work when deciding an application for a building permit in relation to that work.
- (3) The relevant building surveyor may at any time determine that protection work is required in relation to building work.
- (4) A determination under subregulation (2) or (3) must be in the form of Form 6.
- (5) Within 7 days after making a determination under this regulation, the relevant building surveyor must give a copy of the determination to—
 - (a) the applicant for the relevant building permit; and
 - (b) if the owner referred to in subregulation (1) is not the applicant, the owner.

112 Matters relevant building surveyor must consider when determining if protection work required

For the purposes of making a determination under regulation 111, the relevant building surveyor must have regard to—

- (a) any allotment plan provided to the relevant building surveyor under regulation 25 or regulation 26; and
- (b) specifications that describe the materials and methods to be used in the proposed building work; and
- (c) any demolition required as part of the proposed building work; and
- (d) any excavation required as part of the proposed building work; and
- (e) any proposed building work in relation to party walls and retaining walls; and
- (f) the nature and likely extent of any damage or other adverse effect on the stability or otherwise of an adjoining property that may be caused by the proposed building work; and
- (g) any certificate under section 238 of the Act from a registered building practitioner in the category of engineer, class of engineer (civil), who designed the building work; and
- (h) any certificate under section 238 of the Act from an independent engineer who is a registered building practitioner in the category of engineer, class of engineer (civil), certifying that the structural design of the building work complies with the Act and these Regulations; and
- (i) any other matter the relevant building surveyor considers relevant.

113 Protection work notice

- (1) The notice required to be served by the owner on the adjoining owner and the relevant building surveyor by section 84 of the Act must be in

accordance with Form 7 and must be accompanied by the following—

- (a) any determination of the relevant building surveyor made under regulation 111;
 - (b) 3 copies of the notice required to be given by the adjoining owner to the owner under section 85 of the Act;
 - (c) a statement in a form approved by the Authority, that explains the operation of the protection work process under the Act and these Regulations and the procedure for the resolution of disputes relating to protection work;
 - (d) plans and specifications for any building work, building or structure that may affect the adjoining property and that contain sufficient detail to show how the proposed building work will affect the adjoining property;
 - (e) plans and specifications for the proposed protection work that contain sufficient detail to show how the protection work will protect the adjoining property from the effects identified in paragraph (d);
 - (f) one copy of an allotment plan complying with regulation 25(1)(d).
- (2) For the purposes of section 84(2) of the Act—
- (a) the prescribed details of the proposed building work are—
 - (i) the relevant details set out in Form 7; and
 - (ii) the details in the documents required under subregulation (1)(d); and

- (b) the prescribed details of the proposed protection work are—
 - (i) the relevant details set out in Form 7; and
 - (ii) the details in the documents required under subregulation (1)(e); and
- (c) the prescribed information is any information set out in Form 7 that is not a prescribed detail under paragraph (a) or (b).

114 Protection work response notice

- (1) The notice required to be given by the adjoining owner to the owner under section 85 of the Act agreeing or disagreeing to the proposed protection work or requiring more information must be in accordance with Form 8.
- (2) The prescribed information to be contained in a notice under section 85 of the Act is the information set out in Form 8.

115 Notice of relevant building surveyor determination

A written notice of determination by the relevant building surveyor under section 87 of the Act must—

- (a) be in accordance with Form 9; and
- (b) include a statement informing the recipient of the notice of any right of appeal to the Building Appeals Board under section 141 of the Act; and
- (c) include the prescribed appeal period under regulation 271 that applies in relation to that right of appeal; and
- (d) be accompanied by the owner's proposal for protection work under section 84 of the Act; and

- (e) be accompanied by the adjoining owner's notice under section 85(1)(b) of the Act (if any).

Division 2—Protection of the public

116 Protection of the public

- (1) Precautions must be taken before and during building work to protect the safety of the public if required by the relevant building surveyor.
- (2) The precautions must be approved by the relevant building surveyor before building work is commenced.
- (3) Before and during the carrying out of building work all excavations must be fenced or otherwise guarded against being a danger to life or property.
- (4) The report and consent of the relevant council must be obtained to an application for a building permit relating to the erection of precautions over the street alignment unless a local law requires the taking of precautions and the precautions comply with the local law.

Division 3—Demolition

117 Demolition

- (1) Precautions must be taken before and during demolition in accordance with AS 2601 The demolition of structures as in force or as issued or as published from time to time and the following—
 - (a) the demolition must not be commenced until the precautionary measures have been inspected and approved by the relevant building surveyor;

- (b) no part of any external wall on or within 3 m of a street alignment may be pulled down except during the hours that the relevant building surveyor directs;
 - (c) protective outriggers must be installed where necessary to guard against danger to life or property or when required by the relevant building surveyor;
 - (d) the site must be cleared of all debris.
- (2) The relevant building surveyor may exempt minor demolition work from the requirements of subregulation (1) if the relevant building surveyor is of the opinion that the nature of the demolition work does not warrant those measures.

Division 4—Excavations and retaining walls

118 Excavations

- (1) All excavations and backfilling must be executed in a safe and workmanlike manner.
- (2) Unless exempted by the relevant building surveyor, all water must be removed or diverted from excavations before the laying of footings.

119 Retaining walls

- (1) The municipal building surveyor may require the owner of an allotment to provide retaining walls or other means of maintaining the stability of the soil if the municipal building surveyor considers that the stability of the ground on the allotment or any adjoining property has been or may be adversely affected by any excavation or filling of soil on the allotment.
- (2) An owner of an allotment must comply with a requirement in relation to the allotment under subregulation (1).

Penalty: 10 penalty units.

- (3) Subregulation (1) does not apply if the owner of the allotment is required to provide protection work in relation to an adjoining property under regulation 111.

Part 8—Building work

Division 1—Methods of assessment of compliance

120 Testing of materials

- (1) The relevant building surveyor may require that the owner or builder carrying out building work for which a building permit has been issued arrange for the testing of any material used in the building work.
- (2) The relevant building surveyor may, as a result of tests carried out under subregulation (1), prohibit the use of any material that—
 - (a) does not meet the requirements of these Regulations; or
 - (b) is found to be unsuitable or unfit for the purposes for which it is intended.
- (3) Tests required under subregulation (1) must be carried out by an Accredited Testing Laboratory or a Registered Testing Authority or an approved person or organisation.

121 Fire performance requirements—performance solutions

Despite anything to the contrary in the BCA, the relevant building surveyor must not determine that a performance solution complies with a fire performance requirement of the BCA unless the relevant building surveyor—

- (a) holds a Graduate Certificate in Performance-Based Building & Fire Codes from Victoria University; or
- (b) holds a qualification that the Victorian Building Authority considers is equivalent to that Certificate; or

- (c) relies on a report of the chief officer under regulation 129, that states that the chief officer is satisfied that a satisfactory degree of fire safety is achieved by that performance solution; or
- (d) relies on a certificate under section 238 of the Act by a fire safety engineer, who did not design the building work, that states that the performance solution complies with that performance requirement; or
- (e) relies on a certificate under section 238 of the Act by a registered building surveyor, who did not design the building work, and who holds a qualification referred to in paragraph (a) or (b), that states that the performance solution complies with that performance requirement; or
- (f) relies on a determination of the Building Appeals Board under section 160A of the Act that the performance solution complies with that performance requirement; or
- (g) relies on a certificate of accreditation issued by the Building Regulations Advisory Committee that states that the performance solution complies with that performance requirement; or
- (h) relies on a Certificate of Conformity issued by a person or body duly authorised by the Australian Building Codes Board, that states that the performance solution complies with that performance requirement.

122 Certificates of compliance—proposed building work

The prescribed classes of proposed building work and the prescribed categories and classes of registered building practitioners in relation to

proposed building work for the purposes of section 238(1)(a) of the Act are as follows—

- (a) for a certificate relating to the design or part of the design of building work relating to a structural, sewerage, water or drainage matter—category of engineer, class of engineer (civil);
- (b) for a certificate relating to the design or part of the design of building work relating to a mechanical matter including hydraulic services within a building—category of engineer, class of engineer (mechanical);
- (c) for a certificate relating to the design or part of the design of building work relating to an electrical matter—category of engineer, class of engineer (electrical);
- (d) for a certificate relating to the design or part of the design of building work relating to a fire safety matter—category of engineer, class of engineer (fire safety);
- (e) for a certificate relating to the design or part of the design of any of the above classes of building work—category of building surveyor.

123 Certificates of compliance—building work

The prescribed classes of building work and the prescribed categories and classes of registered building practitioners in relation to building work for the purposes of section 238(1)(b) of the Act are as follows—

- (a) for a certificate relating to the inspection of domestic building work relating to a structural, sewerage, water or drainage matter—category of engineer, class of engineer (civil);

- (b) for a certificate relating to the inspection of domestic building work relating to a mechanical matter including hydraulic services within a building—category of engineer, class of engineer (mechanical);
- (c) for a certificate relating to the inspection of domestic building work relating to an electrical matter—category of engineer, class of engineer (electrical);
- (d) for a certificate relating to the inspection of domestic building work relating to a fire safety matter—category of engineer, class of engineer (fire safety);
- (e) for a certificate relating to the inspection of domestic building work—category of building surveyor or building inspector;
- (f) for a certificate relating to the erection of a prescribed temporary structure—category of building surveyor or building inspector or category of engineer, class of engineer (civil) or category of person who erects or supervises the erection of prescribed temporary structures.

124 Registered building practitioner must document performance solutions in certificate of compliance

- (1) A registered building practitioner who issues a certificate under section 238 of the Act that certifies that a performance solution complies with a performance requirement of the BCA in relation to proposed building work must record in writing the following—
 - (a) the performance requirement with which the performance solution complies;
 - (b) details of any of the following that the registered building practitioner uses or relies on in determining that the performance

requirement complies with the performance solution—

- (i) the assessment method or methods;
 - (ii) the details of any expert judgement;
 - (iii) the details of any tests or calculations;
 - (iv) the details of any standards or other information.
- (2) A registered building practitioner must within 7 days after a request from the relevant building surveyor give to the relevant building surveyor a copy of the record prepared under subregulation (1).

125 Evidence of suitability—certificate from professional engineer or other qualified person

- (1) The BCA Volume One applies as if in clause A2.2(a)(v) for "a professional engineer or other appropriately qualified person" there were substituted "a registered building practitioner in the category or class prescribed in the Building Regulations 2018 for the purposes of section 238 of the **Building Act 1993** in relation to the relevant class of building work".
- (2) The BCA Volume Two applies as if in clause 1.2.2(a)(iii) for "a professional engineer or other appropriately qualified person" there were substituted "a registered building practitioner in the category or class prescribed in the Building Regulations 2018 for the purposes of section 238 of the **Building Act 1993** in relation to the relevant class of building work".

126 Forms of certificates of compliance

A certificate under section 238 of the Act must be in a form approved by the Authority and published from time to time in the Government Gazette.

Division 2—Special provisions

127 Record of pile-driving

Any person installing piles must—

- (a) keep a record of all pile-driving operations undertaken during the construction including any determination of allowable loadings; and
- (b) make the records available for inspection by the relevant building surveyor during the progress of the pile-driving operations; and
- (c) within 28 days of the completion of the pile-driving operations forward the complete records of the pile-driving operations to the relevant building surveyor.

Penalty: 10 penalty units.

128 Branding of timber

- (1) Despite performance requirement BP1.1 of the BCA Volume One and performance requirement P2.1.1 of the BCA Volume Two, every piece of timber to be used for structural purposes must be—
 - (a) stress-graded in accordance with whichever of the following standards is applicable to the type of timber—
 - (i) AS 2082 Timber—Hardwood—
Visually stress-graded for structural purposes, as in force or as issued or published from time to time (*AS 2082*);
 - (ii) AS 2858 Timber—Softwood—Visually stress-graded for structural purposes, as in force or as issued or published from time to time (*AS 2858*);

- (iii) AS/NZS 1748 Timber—Solid—
Stress-graded for structural purposes,
as in force or as issued or published
from time to time; and
- (b) marked at least once with—
 - (i) the source of the stress grading; and
 - (ii) the word "seasoned" or the letter "S" if
seasoned in accordance with AS 2082
or AS 2858; and
 - (iii) the stress grade or stress grade colour
in accordance with AS 1613 Timber—
Colours for marking F-grades, as in
force or as issued or published from
time to time.
- (2) Nothing in this regulation applies to timber—
 - (a) to be used as a stump, sole plate or as
fencing material; or
 - (b) having a dimension of 25 mm or less; or
 - (c) comprising part of a manufactured
component which complies with AS 1720.1
Timber structures—Part 1: Design methods,
as in force or as issued or published from
time to time; or
 - (d) which has been previously used, but which
in the opinion of the relevant building
surveyor is suitable to be used for structural
purposes.

129 Requirements for permits involving fire safety matters

- (1) The report and consent of the chief officer must be obtained to an application for a building permit which involves any of the following fire safety matters if those matters do not meet the deemed-to-satisfy provisions of the BCA—

- (a) fire hydrants;
 - (b) fire control centres or fire control rooms;
 - (c) fire precautions during construction;
 - (d) fire mains;
 - (e) control valves;
 - (f) booster assemblies;
 - (g) open space and perimeter vehicular access to the extent it relates to emergency vehicles;
 - (h) fire indicator panels;
 - (i) fire services controls in passenger lift cars.
- (2) In a report under subregulation (1), the chief officer may consent to a variation of the requirements of the BCA if the chief officer is satisfied that a satisfactory degree of fire safety is achieved.
- (3) When a building permit is issued which involves the installation of fire sprinklers and the installation does not meet the deemed-to-satisfy provisions of the BCA, the relevant building surveyor must forward details of the installation to the chief officer.

130 Report and consent for building over easements

- (1) The report and consent of the relevant service authority must be obtained to an application for a building permit to construct a building over an easement vested in that service authority.
- (2) This regulation does not apply to implied easements under the **Subdivision Act 1988**.

Notes

- 1 Section 148 of the **Water Act 1989** prohibits a person from building a structure, or placing any filling on land without the consent of the Melbourne Water Corporation or other water supply authority—
 - over which an easement exists either in favour of a water supply authority, or for water supply, sewerage or drainage purposes; or
 - within 5 m laterally of any works of the Melbourne Water Corporation; or
 - within 1 m laterally of any works of any other water supply authority.
- 2 Section 148 of the **Water Act 1989** also prohibits the removal of any soil, rock or other matter that supports, protects or covers any works of the Melbourne Water Corporation or water supply authority.

131 Report concerning need for electricity substations

- (1) If an application is made for a building permit for the construction of a building, the relevant building surveyor may require a report from the relevant electricity supply authority as to whether an electricity substation is necessary on the allotment and, if so, the size and location of the substation.
- (2) This regulation does not apply to the construction of a Class 1 or 10 building.

132 Report and consent for septic tank systems

- (1) The report and consent of the relevant council must be obtained to an application for a building permit that requires—
 - (a) the installation or alteration of a septic tank system; or
 - (b) the construction of a building over an existing septic tank system.

- (2) The report and consent of the relevant council need not be obtained to an application for a building permit referred to in subregulation (1) if a permit for the construction, installation or alteration of the septic tank system that is relevant to the application has been issued under section 53M(5) of the **Environment Protection Act 1970**.

133 Stormwater drainage

- (1) The design of every stormwater drainage system to the point of discharge from an allotment must be approved by the relevant building surveyor.
- (2) The report of the relevant council indicating the location of the point of discharge from an allotment either within the allotment or at the allotment boundary must be obtained in relation to an application for a building permit for the carrying out of building work that includes a stormwater drainage system.
- (3) The design of every stormwater drainage system must—
 - (a) be approved by the relevant building surveyor; and
 - (b) the point of discharge must be consistent with the point of discharge identified in the report obtained under subregulation (2).

134 Buildings above or below certain public facilities

- (1) This regulation does not apply to a part of a building to which Part 6 applies.
- (2) The report and consent of the relevant council must be obtained to an application for a building permit for the construction of a building above or below a street, railway, bus terminal or similar public facility whether or not such a building is connected to other buildings.

Part 9—Building work—safety requirements

Division 1—Requirements for barriers for swimming pools and spas

135 Definition of owner

In this Division, *owner* in relation to land that contains a swimming pool or spa means—

- (a) in the case of a swimming pool or spa contained on land being purchased under a terms contract (within the meaning of the **Sale of Land Act 1962**) under which the purchaser has become entitled to possession or to the receipt of the rents and profits, the purchaser of that land; and
- (b) in the case of a swimming pool or spa contained on any other land, the owner of that land.

136 Application of this Division

This Division applies to land that contains a swimming pool or spa which—

- (a) is appurtenant to a Class 1, 2, 3 or 10 building or a Class 4 part of a building; and
- (b) has the capacity to contain water that is more than 300 mm deep; and
- (c) was constructed, or for which a building approval was granted, before 8 April 1991.

137 Requirement for barriers

The owner of the land must ensure that one or more of the following barriers are in place to restrict access to the part of the land containing the swimming pool or spa—

- (a) a wall of a building, but only if—

- (i) any door or gate in the wall complies with regulation 138; and
 - (ii) any openable part of any window in the wall complies with regulation 139;
- (b) a fence and gate complying with AS 1926.1—1993 Swimming pool safety Part 1: Fencing for swimming pools, published 26 July 1993 as in force or as issued from time to time;
- (c) a paling or imperforate fence if—
 - (i) it is at least 1·5 m in height measured above the ground level on the approach side; and
 - (ii) any door or gate in the fence complies with regulation 138.

Penalty: 50 penalty units.

138 Requirements for doors or gates

For the purposes of regulation 137(a)(i) and (c)(ii)—

- (a) the door or gate must have a self-locking or self-latching device that prevents the door or gate, if the door or gate is in its closed position, from being opened by a person unable to reach the opening mechanism for the door or gate; and
- (b) the opening mechanism on the door or gate must be located not less than 1·5 m above the ground level or the internal floor level (as the case requires), measured from the approach side; and
- (c) the door or gate must be fitted with a device that returns the door or gate to its closed position—

- (i) from any position in the range of positions from fully open to resting on the lock or latch; and
- (ii) from a stationary start from any position within that range without the application of manual force.

139 Requirements for windows in walls used as barriers

For the purposes of regulation 137(a)(ii), the openable part of the window in the wall—

- (a) must be not less than 2·4 m above the ground or paving immediately external to the window; or
- (b) must be not less than 1·5 m above the floor of the room containing the window; or
- (c) must have a catch, bolt, lock or other stop located not less than 1·5 m above the floor of the room containing the window so that the openable part of the window cannot be opened more than 125 mm; or
- (d) must have a securely fitted fly screen.

Division 2—Maintenance and operation of barriers for swimming pools and spas

140 Application of this Division

This Division applies to land that contains a swimming pool or spa that is appurtenant to a Class 1, 2, 3 or 10 building or a Class 4 part of a building.

141 Swimming pool and spa barrier maintenance

The owner of the land must take all reasonable steps to ensure that a barrier restricting access to the swimming pool or spa is properly maintained.

Penalty: 50 penalty units.

142 Swimming pool and spa barrier operation

An occupier of the land must take all reasonable steps to ensure that a barrier restricting access to the swimming pool or spa is operating effectively.

Penalty: 50 penalty units.

143 Swimming pool and spa barrier gate must remain closed

- (1) An occupier of the land must take all reasonable steps to ensure that any gate or door forming part of a barrier restricting access to the swimming pool or spa remains closed except when a person is entering or leaving the part of the land that contains the swimming pool or spa.

Penalty: 50 penalty units.

- (2) A person who opens a gate or door forming part of a barrier restricting access to the swimming pool or spa must ensure that the gate or door is closed immediately after entering or leaving the part of the land that contains the swimming pool or spa.

Penalty: 50 penalty units.

Division 3—Fire safety in certain existing residential buildings

144 Definition of owner

In this Division, *owner* in relation to a dwelling, a sole-occupancy unit or a building means—

- (a) in the case of a dwelling, sole-occupancy unit or a building being purchased under a terms contract (within the meaning of the **Sale of Land Act 1962**) under which the purchaser has become entitled to possession or to the receipt of the rents and profits, the

purchaser of that dwelling, sole-occupancy unit or building; and

- (b) in the case of any other dwelling, sole-occupancy unit or building, the owner of that dwelling, sole-occupancy unit or building.

145 Automatic smoke detection and alarm systems

- (1) This regulation applies to a Class 1 or 3 building or a Class 4 part of a building or a sole-occupancy unit contained in a Class 2 building or a Class 9a building that is a residential care building that was constructed, or for which a building permit was granted, before 1 August 1997.
- (2) A Class 1 building must have installed throughout the building—
 - (a) a smoke alarm system that complies with Part 3.7.2 of the BCA Volume Two; or
 - (b) an approved smoke alarm system powered from a mains electricity supply, if there is such a supply to the building.
- (3) A building, other than a Class 1 building, must have installed throughout the building either one or both of the following as required by Specification E2.2a of the BCA Volume One—
 - (a) a smoke alarm system that complies with clause 3 of Specification E2.2a of the BCA Volume One;
 - (b) a smoke detection system that complies with clause 4 of Specification E2.2a of the BCA Volume One.

- (4) This regulation must be complied with by—
 - (a) in the case of a sole-occupancy unit contained in a Class 2 building, the owner of the sole-occupancy unit; or
 - (b) in any other case, the owner of the building.
- (5) Subregulation (3) does not apply to a building in which there is installed throughout the building an approved smoke detection and alarm system that consists of either one or both of the following—
 - (a) an approved smoke alarm system powered from a mains electricity supply;
 - (b) an approved smoke detection system.
- (6) This regulation does not apply to a Class 1a or Class 4 part of a building or a sole-occupancy unit contained in a Class 2 building that complies with regulation 707 of the Building Interim Regulations 2017 as in force immediately before its revocation.
- (7) This regulation does not apply to a Class 1b or 3 building or a Class 9a building that is a residential care building that complies with regulation 709 of the Building Interim Regulations 2017 as in force immediately before its revocation.

146 Residential care buildings—automatic fire suppression systems

- (1) This regulation applies to a Class 9a building that is a residential care building that was constructed, or for which a building permit was granted, before 1 August 1997.
- (2) A fire sprinkler system in accordance with the deemed-to-satisfy provisions contained in clause E1.5 of the BCA Volume One must be installed throughout a residential care building.

- (3) This regulation must be complied with by the owner of the building.
- (4) This regulation does not apply to a building that has an approved automatic fire suppression system installed throughout the building.

147 Shared accommodation buildings—automatic fire suppression systems

- (1) This regulation applies to a Class 3 building that is a shared accommodation building constructed, or for which a building permit was granted, before 1 July 2003.
- (2) A fire sprinkler system in accordance with deemed-to-satisfy provisions contained in clause E1.5 of the BCA Volume One must be installed throughout a shared accommodation building.
- (3) This regulation must be complied with by the owner of the building.
- (4) This regulation does not apply to a shared accommodation building that has a rise in storeys of not more than 2 and—
 - (a) the distance of travel from the entrance doorway of each sole-occupancy unit is not more than 6 m—
 - (i) to the nearest exit; or
 - (ii) to a point from which travel in different directions to at least 2 exits is available; and
 - (b) that has a fire hose reel system in accordance with the deemed-to-satisfy provisions contained in clause E1.4 of the BCA Volume One or, in the case of a fire compartment having a floor area not greater than 500 m², portable fire extinguishers to cover Class A fire risks in accordance with AS 2444—2001 Portable fire extinguishers and fire

- blankets—Selection and location as in force or as issued or published from time to time; and
- (c) that has emergency lighting in accordance with the deemed-to-satisfy provisions contained in clause G4.4 or clause E4.2 of the BCA Volume One (as appropriate); and
 - (d) that has exit signs in accordance with the deemed-to-satisfy provisions contained in Part E4 of the BCA Volume One; and
 - (e) that has a management plan in accordance with Practice Note 2008-13 issued by the Building Commission in November 2008.
- (5) This regulation does not apply to a shared accommodation building that has a rise in storeys of more than 2 and—
- (a) the distance of travel from the entrance doorway of each sole-occupancy unit—
 - (i) to the nearest exit; or
 - (ii) to a point from which travel in different directions to at least 2 exits is available—is not more than 6 m; and
 - (b) that has building elements with a fire-resistance level of not less than 60/60/60 separating each sole-occupancy unit from—
 - (i) a public corridor, public lobby or the like; or
 - (ii) a room not within the sole-occupancy unit; or
 - (iii) the landing of an internal non-fire-isolated stairway; or
 - (iv) another sole-occupancy unit; and

- (c) any doorways from each sole-occupancy unit that provide access to a public corridor, public stairway, internal non-fire-isolated stairway or the like are protected with a self-closing fire door having a fire-resistance level of not less than -/30/30; and
 - (d) that has a fire hose reel system in accordance with the deemed-to-satisfy provisions contained in clause E1.4 of the BCA Volume One; and
 - (e) that has emergency lighting in accordance with clause G4.4 or clause E4.2 contained in the BCA Volume One (as appropriate); and
 - (f) that has exit signs in accordance with the deemed-to-satisfy provisions contained in Part E4 of the BCA Volume One; and
 - (g) that has a management plan in accordance with Practice Note 2008-13 issued by the Building Commission in November 2008.
- (6) This regulation does not apply to a shared accommodation building—
- (a) in which—
 - (i) each storey that has sleeping facilities has its own direct egress to a street or to open space; and
 - (ii) the distance of travel from the entrance doorway of each sole-occupancy unit to the nearest exit, or to a point from which travel in different directions to at least 2 exits is available, is not more than 6 m; or

- (b) that was constructed, or for which a building permit was granted, before 1 August 1997;
or
- (c) that has an approved automatic fire suppression system installed throughout the building.

Part 10—Designation of special areas for building work

148 Mapping of designated special areas

A council must prepare maps for all designated special areas within its municipal district.

149 Alteration to and creation of designated special area

- (1) If in a municipal district a designated special area is altered or a new designated special area is created a relevant council must, as soon as practicable—
 - (a) amend the map for the designated special area that has been altered; or
 - (b) prepare a map of the new designated special area that has been created.
- (2) A council must advise the Authority within 7 days if a designated special area within its municipal district is altered or if a new designated special area is created.
- (3) The relevant council must lodge with the Authority within 7 days copies of designated special area maps amended or prepared under regulation 148 or subregulation (1).
- (4) A council must make an up-to-date copy of each designated special area map applicable to its municipal district that has been prepared under regulation 148 or subregulation (1) available to the public for inspection without charge at the offices of the council during normal business hours.

150 Termite risk areas

A council may designate areas within its municipal district in which buildings are likely to be subject to attack by termites.

151 Construction in termite risk areas

Despite anything to the contrary in performance requirement BP1.1 of the BCA Volume One and performance requirement P2.1.1 of the BCA Volume Two—

- (a) a primary building element is only required to be protected against attack by termites if it is part of a building being constructed in an area designated under regulation 150; and
- (b) a detached Class 10 building is not required to be protected against termite attack.

152 Significant snowfall areas

- (1) For the purposes of the BCA, a council may designate areas in its municipal district that in its opinion are likely to be subject to significant snowfalls.
- (2) The BCA Volume One applies as if in clause A1.1, in the definition of **Alpine area**, after the word "snowfalls" there were inserted at the end of paragraph (a) "as designated by a council under regulation 152(1) of the Building Regulations 2018".
- (3) The BCA Volume Two applies as if in clause 1.1.1, in the definition of **Alpine area**, after the word "snowfalls" there were inserted at the end of paragraph (a) "as designated by a council under regulation 152(1) of the Building Regulations 2018".

153 Report and consent for building in areas liable to flooding

- (1) This regulation does not apply to—
 - (a) a Class 10 building; or
 - (b) an unenclosed floor area of a building; or

- (c) an alteration to an existing building if the area of the existing building is not increased by more than 20 m².
- (2) The report and consent of the relevant council must be obtained to an application for a building permit if the site is on an allotment that is in an area liable to flooding.
- (3) The report and consent of the relevant council under subregulation (2) need not be obtained to an application for a building permit if—
 - (a) a planning permit is required for the construction of the building; and
 - (b) the relevant planning scheme regulates the level of the lowest floor of the building in relation to any flood level declared under the **Water Act 1989** or otherwise determined by the floodplain management authority or the relevant council.
- (4) The relevant council must not give its consent under subregulation (2) if it is of the opinion that there is likely to be a danger to the life, health or safety of the occupants of the building due to flooding of the site.
- (5) In its report under subregulation (2) the relevant council may specify a level for the surface of the lowest floor of a building on the site.
- (6) Before specifying a floor level under subregulation (5) the relevant council must—
 - (a) consult with the floodplain management authority for that site; and
 - (b) specify a level at least 300 mm above any flood levels declared under the **Water Act 1989** or otherwise determined by the floodplain management authority, unless the

floodplain management authority consents to a lower floor level.

- (7) The relevant council must without delay advise the floodplain management authority and the sewerage authority for that site of the floor level (if any) specified under subregulation (5).

154 Report and consent for construction on designated land or designated works

- (1) The report and consent of the relevant council must be obtained for an application for a building permit for the construction of a building on designated land or designated works.
- (2) The report and consent of the relevant council under subregulation (1) may include recommendations controlling the location and construction of retaining walls and fences in relation to designated land or designated works.
- (3) Before giving its consent under subregulation (1), the relevant council must consult with the waterway management authority for the designated land or designated works.
- (4) The report and consent of the council need not be obtained to an application for a building permit referred to in subregulation (1) if the consent of the relevant waterway management authority has been obtained as a requirement of a planning permit for the construction of the building.
- (5) In this regulation—

waterway management authority in relation to designated land or designated works means the Authority to which Division 2 of Part 10 of the **Water Act 1989** applies that has the waterway management district (within the meaning of that Act) which contains the designated land or designated works.

Part 11—Bushfire safety

Division 1—Construction in designated bushfire prone areas

155 Designated bushfire prone areas

- (1) The Minister may determine that an area which is subject, or which is likely to be subject, to bushfires is a designated bushfire prone area.
- (2) A determination under subregulation (1) must be published in the Government Gazette and takes effect on the later of—
 - (a) the day of publication; or
 - (b) any later day specified in the determination.
- (3) The Minister must prepare a map that describes all areas that are designated from time to time as bushfire prone areas by a determination under subregulation (1).

Note

The map prepared for the purposes of this subregulation, including the map as amended from time to time, will be published on the Land Channel website www.land.vic.gov.au.

- (4) If the Minister alters a designated bushfire prone area or creates a new designated bushfire prone area in a determination under subregulation (1), the Minister must, as soon as practicable after making the determination, amend the map prepared under subregulation (3) to describe the altered designated bushfire prone area or the new designated bushfire prone area (as the case requires).
- (5) The Minister must give a copy of any map prepared under this regulation to the Authority.

- (6) The Minister must make a copy of any map given to the Authority under subregulation (5) available without charge for inspection by members of the public during normal office hours at the office of the Authority.
- (7) The Minister must, as soon as practicable after preparing any map under this regulation, give a copy of the map to each council in relation to which a designated bushfire prone area described by the map is wholly or partially within the council's municipal district.
- (8) A council must make a copy of the most recent map given to the council under subregulation (7) available for inspection by members of the public without charge during business hours at the office of that council.

156 Relevant building surveyor must accept bushfire attack level in planning scheme or site assessment for planning permit

- (1) Despite anything to the contrary in the BCA, if a building is to be constructed in a designated bushfire prone area and the bushfire attack level for the site is specified in a planning scheme applying to that site, the relevant building surveyor must accept that bushfire attack level for the purpose of determining the construction requirements that are applicable to the building.
- (2) Despite anything to the contrary in the BCA, if a building is to be constructed in a designated bushfire prone area and—
 - (a) a planning permit is required for the construction of the building; and

- (b) a site assessment for the purpose of determining the bushfire attack level for the site has been considered as part of the application for the planning permit—

the relevant building surveyor must accept that site assessment for the purpose of determining the bushfire attack level of the site and the construction requirements that are applicable to the building.

157 Relevant building surveyor must accept bushfire attack level of 12·5

- (1) Despite anything to the contrary in the BCA, the relevant building surveyor must accept that the bushfire attack level is 12·5 when determining the construction requirements that apply to a building if—
 - (a) the building is to be constructed in a designated bushfire prone area; and
 - (b) the bushfire attack level for the site—
 - (i) is determined as LOW by the relevant building surveyor; or
 - (ii) must be accepted by the relevant building surveyor as LOW under regulation 156.
- (2) In this regulation *building* means—
 - (a) a Class 1, 2 or 3 building; or
 - (b) a Class 10a building that is associated with a Class 1, 2 or 3 building; or
 - (c) a deck that is associated with a Class 1, 2 or 3 building; or

- (d) a specific use bushfire protected building.

Note

Regulation 158 inserts a definition of **Specific use bushfire protected building** into the BCA Volume One.

**158 Specific use bushfire protected buildings—
construction requirements**

- (1) The BCA Volume One applies as if in clause A1.1, after the definition of **Sole-occupancy unit** there were inserted—

"Specific use bushfire protected building
means—

- (a) a Class 9a or 9c building; or
 - (b) a building from which a school within the meaning of section 1.1.3(1) of the **Education and Training Reform Act 2006** is operated; or
 - (c) a building from which an *early childhood centre* is operated; or
 - (d) a Class 4 part of a building associated with a building referred to in paragraphs (a) to (c); or
 - (e) a Class 10a building or deck associated with a building referred to in paragraphs (a) to (c)."
- (2) The BCA Volume One applies as if in Part G5—
- (a) in the **Application** at the foot of clause GP5.1, there were inserted after paragraph (a)—
 - "(ab) a *specific use bushfire protected building*; or";

- (b) in clause G5.1, there were inserted after paragraph (a)—

"(ab) *a specific use bushfire protected building; or*";

- (c) in clause G5.2, there were inserted after paragraph (a)—

"(ab) *a specific use bushfire protected building; or*".

Division 2—Requirements for buildings replacing buildings destroyed in the 2009 bushfires

159 Application of this Division

This Division applies to a Class 1a building on an allotment if—

- (a) construction of the building is proposed on the same allotment as a Class 1a building that was destroyed in bushfires between 1 January 2009 and 31 March 2009 (inclusive); and
- (b) the allotment is subject to a Bushfire Management Overlay under a planning scheme specified in Schedule 7, which applies to that allotment; and
- (c) a planning permit is not required for the construction of the building.

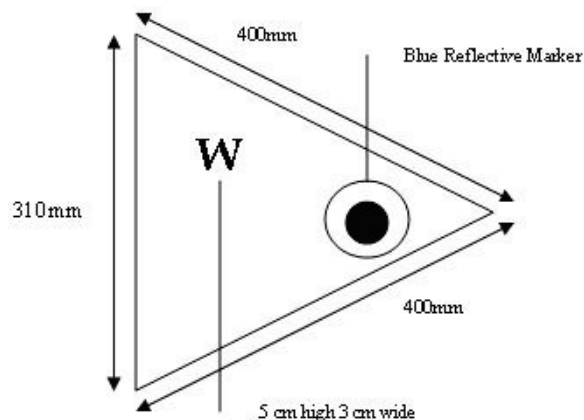
160 Static water supply for fire fighting purposes

- (1) This regulation does not apply in relation to an allotment if—

- (a) the bushfire attack level of the allotment is determined as LOW or 12·5 in accordance with AS 3959; and
- (b) there is a fire hydrant connected to a reticulated water supply within 120 m of the rear of the building.

-
- (2) A static water supply for fire fighting purposes (the ***static water supply***) must be provided on the allotment in accordance with this regulation.
- (3) The static water supply must be—
- (a) used solely for fire fighting purposes; and
 - (b) able to hold 10 000 litres in onsite static storage located on the allotment; and
 - (c) located within 60 m of the building; and
 - (d) situated so as to enable emergency vehicles access to within 4 m of the water supply outlet.
- (4) If the static water supply is not able to be readily seen from the building or access driveway, a sign in or to the like effect of the sign illustrated in the diagram at the foot of this subregulation must be located on the allotment so that it is—
- (a) easily seen by persons operating emergency vehicles; and
 - (b) pointing in the direction of the water supply.

Regulation 160(4): Sign indicating static water supply location



- (5) All below-ground water pipelines relating to the static water supply must be installed to the depths of—
 - (a) 300 mm if subject to vehicle traffic; or
 - (b) 75 mm if under a house or concrete slab; or
 - (c) 225 mm in all other locations.
- (6) All fixed above-ground water pipelines and fittings relating to the static water supply, including the water supply, must be constructed of non-corrosive and non-combustible materials, or be protected from the effects of radiant heat and flame.
- (7) If the static water supply is above ground, the following additional requirements apply—
 - (a) there must be at least one pipe fitting no less than 64 mm, 3 thread/25 mm × 50 mm nominal bore British Standard Pipe (BSP) round male coupling;
 - (b) all pipework and valving between the water supply and the water supply outlet must be no less than 50 mm nominal bore;
 - (c) if the water supply is less than 20 m from the building, each outlet must face away from the building to allow access during emergencies.

161 Access for emergency vehicles

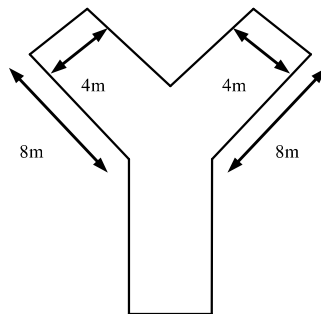
- (1) The driveway to the building must be designed to allow an emergency vehicle access in accordance with this regulation.
- (2) The driveway to the building must be designed so that—
 - (a) any curves in the driveway have a minimum inner radius of 10 m; and

- (b) the average grade for the driveway is no more than 1 in 7 (14.4%) (8.1°) with a maximum of no more than 1 in 5 (20%) (11.3°) for no more than 50 m; and
 - (c) any dips in the driveway have no more than a 1 in 8 (12.5%) (7.1°) entry and exit angle.
- (3) If the driveway from the road to the building or static water supply, including gates, bridges and culverts, is greater than 30 m in length, the driveway must—
 - (a) be designed, constructed and maintained for a load limit of at least 15 tonnes and be of all-weather construction; and
 - (b) provide a minimum trafficable width of 3.5 m, and be clear of encroachments to a height of 4 m from the ground.
- (4) If the driveway from the road to the building or static water supply is longer than 100 m, a turning area for emergency vehicles close to the building must be provided for by either—
 - (a) a turning circle with a minimum radius of 8 m; or
 - (b) the driveway encircling the building; or
 - (c) a T head or Y head with a minimum forced surface of each leg being 8 m in length measured from the centre point of the head and 4 m trafficable width.

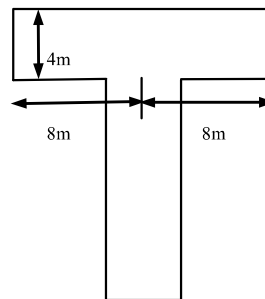
Note

The following diagrams illustrate aspects of subregulation (4)(c).

Regulation 161—Y head



Regulation 161—T head



- (5) If the driveway from the road to the building or static water supply is longer than 200 m, passing bays must be provided every 200 m and must—
 - (a) be 20 m long; and
 - (b) have a trafficable width of 6 m.
- (6) In this regulation *static water supply* has the same meaning as in regulation 160.

162 Report and consent required for non-complying static water supply and access

- (1) The report and consent of the chief officer must be obtained to an application for a building permit to construct a building to which this Division applies if the requirements of regulation 160 or 161 are not proposed to be complied with.
- (2) In reporting on and considering whether to consent to a variation of the requirements of regulation 160 or 161 under subregulation (1), the chief officer must take into account whether a satisfactory degree of bushfire safety will be achieved if the variation is consented to.

Division 3—Private bushfire shelters

163 Application of this Division

This Division applies to a Class 10c building associated with a Class 1 building.

Note

A Class 10c building is a **Private bushfire shelter** as defined in the BCA Volume One and the BCA Volume Two.

164 Private bushfire shelter construction requirements

- (1) The BCA Volume One applies as if in clause A1.1, in the definition of **Private bushfire shelter**, for "Class 1a dwelling" there were substituted "Class 1 building".
- (2) The BCA Volume Two applies as if—
 - (a) in clause 1.1.1, in the definition of **Private bushfire shelter**, for "Class 1a dwelling" there were substituted "Class 1 building"; and
 - (b) in clause O2.3(d), for "Class 1a dwelling" there were substituted "Class 1 building"; and
 - (c) in performance requirement P2.3.5(e), for "associated dwelling" there were substituted "associated Class 1 building"; and
 - (d) in the **Application** at the foot of performance requirement P2.3.5, after "Class 10c building" there were inserted "associated with a Class 1 building".

165 Private bushfire shelter performance requirements—performance solutions

Despite anything to the contrary in the BCA, a relevant building surveyor must not determine that a performance solution complies with performance requirement P2.3.5 of the BCA

Volume Two unless the relevant building surveyor—

- (a) relies on a certificate under section 238 of the Act by a fire safety engineer, who did not design the building work, that states that the performance solution complies with that performance requirement; or
- (b) relies on a determination of the Building Appeals Board under section 160A of the Act that the performance solution complies with that performance requirement; or
- (c) relies on a certificate of accreditation issued by the Building Regulations Advisory Committee that states that the performance solution complies with that performance requirement; or
- (d) relies on a Certificate of Conformity issued by a person or body duly authorised by the Australian Building Codes Board that states that the performance solution complies with that performance requirement.

166 Private bushfire shelter maintenance and operation

- (1) The occupier of an allotment containing a Class 10c building associated with a Class 1 building must ensure that the Class 10c building is maintained in a state that enables the Class 10c building to fulfil its purpose.

Penalty: 20 penalty units.

- (2) The occupier of an allotment containing a Class 10c building associated with a Class 1 building must ensure that any paths of travel from the Class 1 building to the Class 10c building are maintained in an efficient condition and kept readily accessible, functional and clear of

obstruction so that access to the Class 10c building is maintained.

Penalty: 20 penalty units.

Part 12—Inspections, notices and orders, and register of powers of entry

Division 1—Inspections and directions

167 Prescribed mandatory notification stages for construction or alteration of building

For the purposes of the definition of *mandatory notification stage* in section 3(1) of the Act, in relation to the construction of a new building or alteration to an existing building, the following stages of building work are prescribed—

- (a) before placing a footing;
- (b) before pouring an in situ reinforced concrete member that is specified in the relevant building permit by the relevant building surveyor;
- (c) the completion of framework;
- (d) during the carrying out of building work specified in the relevant building permit by the relevant building surveyor for the purposes of any inspection required by regulation 172;
- (e) final, on the completion of all building work.

168 Prescribed mandatory notification stages for demolition or removal of building

For the purposes of the definition of *mandatory notification stage* in section 3(1) of the Act, in relation to the demolition or removal of a building, the following stages of building work are prescribed—

- (a) the completion of any precautions required to be taken under regulation 116 or 117;

- (b) final, on the completion of all demolition or removal work.

169 Prescribed mandatory notification stages for construction of swimming pool or spa

For the purposes of the definition of *mandatory notification stage* in section 3(1) of the Act, in relation to the construction of a swimming pool or spa, the following stages of building work are prescribed—

- (a) the completion of any excavation related to the installation of the swimming pool or spa;
- (b) before pouring any footing or in situ reinforced concrete member that is specified in the relevant building permit by the relevant building surveyor;
- (c) the completion of any precautions required to be taken under regulation 116;
- (d) final, on the completion of the swimming pool or spa and related safety barrier.

170 Omission of irrelevant mandatory notification stage

The relevant building surveyor may omit a mandatory notification stage set out in regulation 167 for building work if that stage is not relevant to the building work.

171 Building permit must specify mandatory notification stages

The relevant building surveyor must specify the mandatory notification stages for building work determined under regulations 167, 168, 169 and 170 in the building permit issued for that building work.

172 Building surveyor must cause fire and smoke resisting building elements to be inspected

- (1) The relevant building surveyor must cause to be inspected the building work relating to the following in each storey of a Class 2, 3, or 4 building—
 - (a) any building element that is lightweight construction and that is required to resist the spread of fire in at least one sole-occupancy unit;
 - (b) one of each stair shaft, lift shaft or service shaft that is lightweight construction and that is required to resist the spread of fire;
 - (c) the components of any building element referred to in paragraph (a) or (b);
 - (d) the junctions of any building element referred to in paragraph (a) or (b) with other building elements.
- (2) The relevant building surveyor must cause to be inspected at least one of each type of fire protection method for each type of service penetration to any building element that is required to resist the spread of fire or smoke on each storey of a Class 2, 3, 4, 9a or 9c building.
- (3) An inspection for the purposes of this regulation must be carried out when the building element is accessible and able to be clearly viewed.
- (4) This regulation does not apply in relation to building work carried out under a permit issued before 2 June 2018.
- (5) In this regulation ***lightweight construction*** means construction which incorporates or comprises sheet or board material, plaster, render, sprayed application, or other material similarly susceptible to damage by impact, pressure or abrasion.

173 Record of inspection of building work

For the purposes of section 35A(1) of the Act, a record of an inspection under section 34 or 35 of the Act must contain the following information—

- (a) the date and time of the inspection;
- (b) the purpose of the inspection;
- (c) the building permit number of the permit relating to the building work;
- (d) the address of the building or land on which the building work is being carried out;
- (e) the name and registration number of the registered building practitioner who carried out the inspection;
- (f) the stage of the building work inspected (if applicable);
- (g) the outcome of the inspection.

174 Prescribed persons carrying out inspections

For the purposes of section 35B(b) of the Act, the prescribed classes of inspection and the prescribed classes of person are as follows—

- (a) in the case of an inspection of building work relating to a structural, sewerage, water or drainage matter—a person registered under Part 11 of the Act in the category of engineer, class of engineer (civil);
- (b) in the case of an inspection of building work relating to a mechanical matter including hydraulic services within a building—a person registered under Part 11 of the Act in the category of engineer, class of engineer (mechanical);

- (c) in the case of an inspection of building work relating to an electrical matter—a person registered under Part 11 of the Act in the category of engineer, class of engineer (electrical);
- (d) in the case of an inspection of building work relating to a fire safety matter—a person registered under Part 11 of the Act in the category of engineer, class of engineer (fire safety);
- (e) in the case of an inspection of building work relating to the erection of a prescribed temporary structure that is a scaffolding stage or tower, a person registered under Part 11 of the Act in—
 - (i) the category of engineer, class of engineer (civil); or
 - (ii) the category of person who erects or supervises the erection of prescribed temporary structures, class of temporary structures (limited to scaffolding stages and towers);
- (f) in the case of an inspection of building work relating to the erection of a prescribed temporary structure that is a tent or marquee, a person registered under Part 11 of the Act in—
 - (i) the category of engineer, class of engineer (civil); or
 - (ii) the category of person who erects or supervises the erection of prescribed temporary structures, class of temporary structures (limited to tents and marquees).

175 Relevant building surveyor to keep and make available directions to fix building work

The relevant building surveyor must—

- (a) keep a copy of each written direction to fix building work that the relevant building surveyor gives under Division 2 of Part 4 of the Act until the earliest of the following—
 - (i) an occupancy permit or certificate of final inspection relating to the building work is issued;
 - (ii) the direction is revoked;
 - (iii) the direction is quashed or set aside by the Building Appeals Board; and
- (b) make copies of directions kept under paragraph (a) available for inspection by any person during office hours.

176 Person to whom authorised person must give documents under section 37J of the Act

For the purposes of section 37J of the Act, the relevant building surveyor is a prescribed person to whom an authorised person must give the documents set out in that section.

Division 2—Notices and orders

177 Emergency orders

For the purposes of section 105(1) of the Act, an emergency order made under section 102 of the Act must include—

- (a) the location of the building, land or place of public entertainment to which the order applies; and
- (b) the name of the owner, occupier or builder to whom or which the order is directed; and

- (c) the reason or reasons why the order was made; and
- (d) the period within which the order must be complied with; and
- (e) the date of any inspection of the building, land or place of public entertainment carried out by the municipal building surveyor or relied on by the municipal building surveyor when deciding whether to make the order (if applicable); and
- (f) the name and qualifications of any person other than the municipal building surveyor who carries out an inspection referred to in paragraph (e); and
- (g) the date of making of the order; and
- (h) the name and address of the municipal building surveyor.

178 Form of emergency orders

An emergency order made under section 102 of the Act may be in the form of Form 10.

179 Building notices

For the purposes of section 108(2) of the Act, a building notice served under section 106 of the Act must include—

- (a) the location of the building or place of public entertainment to which the notice applies; and
- (b) the name and address of the owner to whom or which the notice is directed; and
- (c) the reason or reasons why the notice was served; and

- (d) the date of any inspection of the building, land or place of public entertainment carried out or relied on by the relevant building surveyor when deciding whether to serve the notice (if applicable); and
- (e) the name and qualifications of any person other than the relevant building surveyor who carries out an inspection referred to in paragraph (d); and
- (f) the date of making of the notice; and
- (g) the name and address of the relevant building surveyor.

180 Form of building notice

A building notice served under section 106 of the Act may be in the form of Form 11.

181 Building orders

For the purposes of section 114(1)(c) of the Act, a building order made under section 111, 112 or 113 of the Act must include—

- (a) the location of the building, land or place of public entertainment to which the order applies; and
- (b) the name and address of the person to whom the order is directed; and
- (c) the reason or reasons why the order was made; and
- (d) the date of any inspection of the building, land or place of public entertainment carried out or relied on by the relevant building surveyor when deciding whether to make the order (if applicable); and

- (e) the name and qualifications of any person other than the relevant building surveyor who carries out an inspection referred to in paragraph (d); and
- (f) the date of making of the order; and
- (g) the name and address of the relevant building surveyor.

182 Form of building orders

- (1) A building order made under section 111 may be in the form of Form 12.
- (2) A building order made under section 112 of the Act may be in the form of Form 13.
- (3) A building order made under section 113 of the Act may be in the form of Form 14.

Division 3—Powers of entry

183 Register of exercise of powers of entry

- (1) For the purposes of section 230(1), (2) or (3) of the Act, the register of the exercise of powers of entry must include the following information in relation to each power of entry exercised under Subdivision 5 of Division 2 of Part 13 of the Act—
 - (a) the power of entry exercised;
 - (b) the date and time of the entry;
 - (c) the purpose of the entry;
 - (d) the address of the building or land entered;
 - (e) the names of the persons and registration numbers of any registered building practitioners involved in the exercise of the power of entry;
 - (f) a record of any acknowledgement of consent given under section 228G of the Act;

- (g) whether consent was withdrawn by the occupier of the building or land at any time;
 - (h) a description of things done while in or on the building or land;
 - (i) whether the entry involved the use of a warrant;
 - (j) a record of any receipt required to be given under section 229A of the Act for a thing seized;
 - (k) whether a police officer provided assistance under section 229H of the Act;
 - (l) the time of departure.
- (2) For the purposes of section 230(4) of the Act, the register of the exercise of powers of entry must include the following information—
- (a) in the case of an entry made under section 228D of the Act, the following—
 - (i) the date and time of the entry;
 - (ii) the purpose of the entry;
 - (iii) the address of the building or land entered;
 - (iv) the names of the persons and registration numbers of any registered building practitioners involved in the exercise of the power of entry;
 - (b) in the case of an entry made under section 228J of the Act, the following—
 - (i) the date and time of the entry;
 - (ii) the purpose of the entry;
 - (iii) the address of the building or land entered;

- (iv) the names of the persons and registration numbers of any registered building practitioners involved in the exercise of the power of entry;
- (v) a description of things done while in or on the building or land;
- (vi) a record of any receipt required to be given under section 229A of the Act for a thing seized;
- (vii) whether a police officer provided assistance under section 229H of the Act;
- (viii) the time of departure.

Part 13—Occupancy permits and certificates of final inspection

Division 1—General

184 Application of Part

Subject to these Regulations, this Part applies to all buildings and places of public entertainment.

185 Exemptions from occupancy permit

- (1) For the purposes of section 21(2)(c) of the Act, an occupancy permit is not required—
 - (a) in respect of building work relating to—
 - (i) a Class 10 building; or
 - (ii) an alteration to a Class 1a building; or
 - (iii) an alteration within a sole-occupancy unit in a Class 2 or 3 building; or
 - (b) in respect of building work specified in column 2 of the Table in Schedule 3.
- (2) A building specified in column 2 of the Table in Schedule 3 is exempted from the requirement for an occupancy permit in relation to building work carried out on that building.

Division 2—Applications for occupancy permit

186 Application for occupancy permit

- (1) An application for an occupancy permit must be in the form of Form 15.
- (2) For the purposes of clause 1(a) and (b) of Schedule 2 to the Act—
 - (a) the information to be contained in the application is the information that must be set out in Form 15; and

- (b) the application must be accompanied by the following documents—
 - (i) any compliance certificate within the meaning of Part 12A of the Act given for plumbing work carried out in conjunction with the building work in the building to which the application applies;
 - (ii) any certificate of compliance within the meaning of section 3 of the **Electricity Safety Act 1998** for electrical work carried out in conjunction with the building work in the building or place of public entertainment to which the application applies.

187 Reporting authorities for occupancy permit

- (1) The report and consent of the chief officer must be obtained in relation to an application for an occupancy permit—
 - (a) if the chief officer was a reporting authority in relation to the application for the building permit which required the issue of the occupancy permit; or
 - (b) relating to a building or building work involving the transmission signal of alarms required, under these Regulations or any previous corresponding regulations, to be connected to a fire station or other alarm monitoring service.
- (2) Subject to subregulation (3), the report and consent of the relevant council must be obtained in relation to an application for an occupancy permit relating to—

- (a) the installation or alteration of a septic tank system; or
- (b) the construction of a building over an existing septic tank system.
- (3) The report and consent of the relevant council need not be obtained in relation to an application for an occupancy permit referred to in subregulation (2) if a certificate approving the use of the septic tank system the subject of the application has been issued under section 53MB of the **Environment Protection Act 1970**.

188 Time limits for application to be given to reporting authority

For the purposes of clause 4(2) of Schedule 2 to the Act, the prescribed time within which the relevant building surveyor must give a copy of an application for an occupancy permit to each reporting authority required to report on or consent to the application is—

- (a) in the case of an application relating to a Class 1 building, 3 business days after the relevant building surveyor receives the application; and
- (b) in any other case, 5 business days after the relevant building surveyor receives the application.

189 Time limits relating to the report or consent of reporting authorities

For the purposes of clause 6(1), (2) and (3) of Schedule 2 to the Act, the prescribed time is—

- (a) in the case of an application relating to a Class 1 building, within 5 business days after a reporting authority is given a copy of an application for an occupancy permit by the relevant building surveyor; and

- (b) in any other case, within 10 business days after a reporting authority is given a copy of an application for an occupancy permit by the relevant building surveyor.

190 Time within which relevant building surveyor must decide application for occupancy permit

- (1) For the purposes of sections 43 and 56 of the Act, the relevant building surveyor must decide an application for an occupancy permit—
 - (a) in the case of a Class 1 building, within 2 business days after the relevant day; and
 - (b) in any other case, within 5 business days after the relevant day.
- (2) In this regulation the *relevant day* means the earlier of the following days—
 - (a) the day on which all reports and consents required to be supplied by reporting authorities in relation to the application are received by the relevant building surveyor;
 - (b) the day by which the reports and consents referred to in paragraph (a) must be supplied to the relevant building surveyor.

191 Time within which municipal building surveyor must decide application to amend occupancy permit

The municipal building surveyor must decide an application to amend an occupancy permit under section 70(1)(a) of the Act—

- (a) in the case of a Class 1 building, within 7 business days after the day the application is received by the municipal building surveyor; or
- (b) in any other case, within 14 business days after the day the application is received by the municipal building surveyor.

Division 3—Occupancy permits

192 Form of occupancy permit

An occupancy permit issued under Part 5 of the Act must be in the form of Form 16.

193 Relevant building surveyor to provide copy of permit

The relevant building surveyor must give a copy of an occupancy permit to the applicant for the occupancy permit within 7 days after issuing the permit.

194 Occupancy permit must specify essential safety measures and related requirements

- (1) The relevant building surveyor or the Authority (as the case requires) must ensure that an occupancy permit (including that permit as amended from time to time) issued in relation to a building or place of public entertainment specifies—
 - (a) all essential safety measures required to be provided in the building or place as part of the building work carried out under the building permit requiring the occupancy permit; and
 - (b) the level of performance, determined by the relevant building surveyor or the Authority (as the case requires), that each essential safety measure must achieve to fulfil its purpose; and
 - (c) the frequency and type of inspection, testing and maintenance required for each essential safety measure determined by the relevant building surveyor or the Authority (as the case requires).

- (2) In determining matters in subregulation (1)(b) and (c), the relevant building surveyor or the Authority must specify the provision of the building regulations with which the installation and operation of the essential safety measure must comply and which sets out the frequency and type of inspection, testing and maintenance required for the essential safety measure.
- (3) In this regulation—
building means—
- (a) a Class 1b, 2, 3, 5, 6, 7, 8 or 9 building;
and
 - (b) a Class 4 part of a building;
- provision of the building regulations* has the same meaning as in section 160 of the Act.
- (4) This regulation does not apply in relation to a smoke alarm installed in a sole-occupancy unit in a Class 1b or 2 building or a Class 4 part of a building.

195 Condition on occupancy permit

- (1) It is a condition of an occupancy permit that each essential safety measure specified in an occupancy permit under regulation 194 must—
- (a) be inspected and tested as specified in the occupancy permit; and
 - (b) be maintained as specified in the occupancy permit so that each essential safety measure achieves the level of performance specified in the occupancy permit.

- (2) If a maintenance determination is made under regulation 215 in relation to a building or place of public entertainment and an occupancy permit applies to the building or place of public entertainment, it is a condition of the occupancy permit that each essential safety measure specified in the maintenance determination must—
- (a) be inspected and tested as specified in the maintenance determination; and
 - (b) be maintained as specified in the maintenance determination so that the essential safety measure achieves the level of performance specified in the maintenance determination.

196 Compliance with AS 1851—2012 taken to be compliance with earlier standards

- (1) This regulation applies in relation to an occupancy permit which specifies the frequency and type of inspection, testing and maintenance required for an essential safety measure in a building or place of public entertainment.
- (2) Despite sections 40 and 51 of the Act, if an occupancy permit specifies that the essential safety measure must be maintained in accordance with AS 1851—2005 Maintenance of fire protection systems and equipment published on 5 September 2005, as in force and as issued from time to time, or an equivalent standard published before 5 September 2005, compliance with AS 1851—2012 is taken to be compliance with the frequency and type of inspection, testing and maintenance requirements specified in the occupancy permit (if applicable).

- (3) If the owner of the building or place of public entertainment, in accordance with subregulation (2), complies with AS 1851—2012 in relation to the essential safety measure, instead of the frequency and type of inspection, testing and maintenance required for the essential safety measure specified in the occupancy permit, the owner must continue to comply with AS 1851—2012 in relation to the essential safety measure.

Division 4—Display and inspection requirements for occupancy permits

197 Display of occupancy permit at approved location

- (1) This regulation applies to—
- (a) Class 1b, 2, 3, 5, 6, 7 and 8 buildings constructed on or after 1 July 1994; and
 - (b) Class 9 buildings; and
 - (c) places of public entertainment.
- (2) An owner of a building or place of public entertainment must ensure that a copy of any current occupancy permit in relation to that building or place is displayed and kept displayed at an approved location within the building or place.

Penalty: 10 penalty units.

198 Approved location for display of permit

- (1) Subject to subregulation (3), the relevant building surveyor must ensure that a location approved within a building for the purposes of regulation 197 is in a prominent position and is accessible to the occupants of the building.
- (2) The relevant building surveyor must ensure that a location approved within a place of public entertainment for the purposes of regulation 197

is in a prominent position and is accessible to the public.

- (3) In a building of a class of building referred to in regulation 281, the location approved for the purposes of regulation 197 may be in an area to which access is available only with the authorisation of the owner of the building.

199 Owner to make permit available for inspection

- (1) This regulation applies to—
- (a) Class 1b, 2, 3, 5, 6, 7 and 8 buildings constructed on or after 1 July 1994; and
 - (b) Class 9 buildings; and
 - (c) places of public entertainment.
- (2) An owner of a building or place of public entertainment must ensure that a copy of any current occupancy permit is available at that building or place for inspection by the municipal building surveyor or chief officer at any time on request.

Penalty: 10 penalty units.

Division 5—Certificates of final inspection

200 Form of certificate of final inspection

A certificate of final inspection must be in the form of Form 17.

201 Relevant building surveyor to notify chief officer of issue of certificates of final inspection

- (1) If a certificate of final inspection is issued in relation to a building or building work involving the transmission signal of an alarm required, under these Regulations or any previous corresponding regulations, to be connected to a fire station or other alarm monitoring service, the relevant building surveyor must notify the chief

officer within 10 days after issuing the certificate that—

- (a) the certificate has been issued; and
 - (b) the required connection has been made.
- (2) If a certificate of final inspection is issued and the chief officer was a reporting authority in relation to the application for the relevant building permit, the relevant building surveyor must notify the chief officer of the issue of the certificate within 10 days after issuing the certificate.

Division 6—Records

202 Keeping of occupancy permit records

- (1) For the purposes of section 75 of the Act, a council must keep the documents relating to occupancy permits in any manner specified by the Keeper of Public Records until—
- (a) the building in relation to which the permit is given is demolished or removed from the allotment; or
 - (b) the occupancy permit is cancelled.
- (2) For the purposes of section 75 of the Act, a council must keep documents relating to a temporary approval for 3 years after the earlier of the following—
- (a) the end of the period for which the temporary approval applies;
 - (b) the temporary approval is cancelled.

203 Documents to be given to council

The following documents are prescribed for the purposes of section 73(1A) of the Act—

- (a) a notice given to the relevant building surveyor under section 25A(1) of the Act;

- (b) a notice given to the relevant building surveyor under section 25A(2) of the Act;
- (c) a notice given to the relevant building surveyor under section 25A(3) of the Act;
- (d) a record of inspection of building work made under section 35A(1) of the Act;
- (e) a determination made by the relevant building surveyor under regulation 111(3);
- (f) a notice served on the relevant building surveyor under section 84(1) of the Act;
- (g) a notice given to the relevant building surveyor under section 85(1) of the Act;
- (h) a determination of the relevant building surveyor under section 87(1) of the Act;
- (i) a determination or order of the Building Appeals Board;
- (j) a determination of the relevant building surveyor that a performance solution complies with a performance requirement of the BCA together with any computations or reports relied on by the relevant building surveyor in making the determination;
- (k) a determination of the municipal building surveyor or a private building surveyor exercising the functions of a municipal building surveyor under regulation 64(1);
- (l) a document setting out any requirement of the relevant building surveyor under regulation 116 to take precautions to protect the safety of the public;
- (m) any test carried out in accordance with regulation 120(1);
- (n) a complete record of pile-driving operations under regulation 127;

- (o) a report and consent of a reporting authority referred to in regulation 187;
- (p) any exemption from, or consent to partial compliance with, certain requirements of these Regulations relating to a building or building work that has been given by the municipal building surveyor or a private building surveyor exercising the functions of a municipal building surveyor under regulation 229(2) or 231(2) or by the relevant building surveyor under regulation 233(3) or 234(2);
- (q) any document required by the relevant building surveyor under clause 2(1) of Schedule 2 to the Act.

204 Prescribed time to give council other documents

For the purposes of section 73(1A) of the Act, the prescribed time is 7 days after the issue or amendment of the occupancy permit or temporary approval (as the case requires).

205 Information to be supplied to council

In addition to the requirements of section 73 of the Act, the relevant building surveyor must within 7 days—

- (a) after issuing a certificate of final inspection, give to the relevant council a copy of the certificate; and
- (b) after issuing an occupancy permit or a certificate of final inspection, give to the relevant council the approved dates of the inspections carried out of the mandatory notification stages of building work carried out on the building or land.

Penalty: 10 penalty units.

Part 14—Places of public entertainment

206 Prescribed classes of buildings or places

- (1) For the purposes of the definition of *place of public entertainment* in section 3(1) of the Act—
 - (a) the following are prescribed classes of buildings—
 - (i) Class 9b buildings with an area greater than 500 m²;
 - (ii) prescribed temporary structures; and
 - (b) places with an area greater than 500 m² are a prescribed class of places unless—
 - (i) the place is used for the purposes of conducting an event or activity which is organised and controlled by a community-based organisation; and
 - (ii) the number of persons in the place at any one time during the event or activity does not exceed 5000.

Example

A place used for a public market conducted by a Rotary club would fall within the class of places prescribed under paragraph (b) if the number of persons in the place at any one time did not exceed 5000.

- (2) For the purposes of this regulation *community-based organisation* means a body, whether or not it is a corporate body, that—
 - (a) is not established primarily for the purposes of profit or gain; and
 - (b) does not distribute any part of any profit or gain made in the conduct of its activities to any member of the organisation; and

- (c) operates in a community wholly for—
 - (i) a philanthropic or benevolent purpose, including the promotion of art, culture, science, religion, education or charity; or
 - (ii) any sporting or recreational purpose, including the benefiting of any sporting or recreational club or association.

207 Prescribed temporary structures

For the purposes of the definition of *prescribed temporary structure* in section 3(1) of the Act, the following are prescribed classes of temporary structures, if those structures do not form part of a building other than a temporary structure or temporary building—

- (a) tents, marquees or booths with a floor area greater than 100 m²;
- (b) seating stands for more than 20 persons;
- (c) stages or platforms (including sky borders and stage wings) exceeding 150 m² in floor area;
- (d) prefabricated buildings with an area exceeding 100 m² and that are not placed directly on the ground surface.

208 Exemption from permit for temporary structures

- (1) For the purposes of section 16(6) of the Act, building work is exempted to the extent it relates to a temporary structure prescribed by regulation 207.

- (2) A temporary structure prescribed by regulation 207 is exempt from these Regulations, other than regulations 210 and 212.

Note

If a prescribed temporary structure is used for the purpose of providing public entertainment it must have an occupancy permit under Division 2 of Part 5 of the Act and meet the requirements of the Authority under that permit.

209 Prescribed place of public entertainment

For the purposes of section 53(2) of the Act, the sportsgrounds and spectator stands known as the Kardinia Park Precinct, Geelong, is a prescribed place of public entertainment.

210 Conditions on occupancy permits

Without limiting the conditions to which an occupancy permit may be subject, an occupancy permit for a place of public entertainment may be issued subject to conditions relating to—

- (a) the engagement of safety officers to be in attendance at the place of public entertainment to provide for the safety of the public; and
- (b) the safety training qualifications that must be held by any person engaged as a safety officer; and
- (c) the responsibilities of a safety officer, including—
 - (i) the operation of fire safety elements, equipment and systems; and
 - (ii) the establishment and operation of evacuation procedures; and
 - (iii) the safety of barriers and exits; and
 - (iv) the control of the use of naked flame in theatrical productions; and

- (d) the exclusion of the public from unsafe areas; and
- (e) the keeping, testing and storage of flammable material or explosive items and equipment in a safe manner, to the extent that this is not required by any other Act or regulations; and
- (f) the ignition of fireworks and the discharge of pistols or other shooting devices in a safe and responsible manner, to the extent that this is not required by any other Act or regulations; and
- (g) the location and designation of passageways and exits; and
- (h) the availability of public toilet facilities and the condition of those facilities.

211 Safety officer qualifications

- (1) For the purposes of regulation 210(b), the Authority or the chief officer may publish a list of safety training qualifications that may be held by a person engaged as a safety officer on the website of the Authority or the chief officer.
- (2) The relevant building surveyor must have regard to the qualifications published under subregulation (1) when determining the safety training qualifications that must be held by a person engaged as a safety officer for the purposes of complying with a condition imposed under regulation 210.

212 Structural design of prescribed temporary structures

Prescribed temporary structures must be designed in accordance with engineering principles to provide for their structural safety and the safety of the public and other persons using them.

Part 15—Maintenance of buildings and places of public entertainment

Division 1—Maintenance of essential safety measures

Subdivision 1—General

213 Application of this Division

- (1) Subject to subregulation (2), this Division applies to—
 - (a) a Class 1b, 2, 3, 5, 6, 7, 8 or 9 building; and
 - (b) a Class 4 part of a building; and
 - (c) a place of public entertainment.
- (2) This Division does not apply to a smoke alarm installed in a sole-occupancy unit in a Class 1b or 2 building or a Class 4 part of a building.

214 Definitions in this Division

In this Division—

essential safety measure means—

- (a) a safety measure specified in column 2 of the table in each Part of Schedule 8 that is required by or under the Act or these Regulations to be provided in relation to a building or place of public entertainment; or
- (b) any other item that is required by or under the Act or these Regulations to be provided in relation to a building or place of public entertainment for the safety of persons in the event of fire and that is designated by the relevant

building surveyor as an essential safety measure; or

- (c) any other item that is an essential safety measure within the meaning of regulation 1202 of the Building Interim Regulations 2017 as in force immediately before its revocation; or
- (d) any other measure (including an item of equipment, form of construction or safety strategy) required for the safety of persons using a building or place of public entertainment required to be provided in relation to that building or place by or under the Act, or any previous corresponding Act, before 1 July 1994;

maintenance determination means—

- (a) a determination made by a relevant building surveyor under regulation 215; or
- (b) a maintenance determination within the meaning of regulation 1202 of the Building Interim Regulations 2017 as in force immediately before its revocation;

maintenance schedule means—

- (a) a maintenance schedule prepared by the municipal building surveyor or a private building surveyor that complies with regulation 222; or
- (b) a maintenance schedule within the meaning of regulation 1202 of the Building Interim Regulations 2017 as in force immediately before its revocation.

Subdivision 2—Maintenance determinations

215 Maintenance determinations for essential safety measures in buildings and places of public entertainment

- (1) This regulation applies if an essential safety measure is required to be provided or altered in a building or place of public entertainment by—
 - (a) a building permit that does not require an occupancy permit; or
 - (b) an emergency order or a building order under Part 8 of the Act.
- (2) The relevant building surveyor must determine and specify in the determination the following—
 - (a) the essential safety measure that is the subject of the determination;
 - (b) the level of performance that the essential safety measure must achieve to fulfil its purpose;
 - (c) the frequency and type of inspection, testing and maintenance required for the essential safety measure.
- (3) A determination under subregulation (2) must—
 - (a) be in writing in the form approved by the Authority; and
 - (b) be given to the owner of the building or place of public entertainment—
 - (i) with the certificate of final inspection, if the essential safety measure is required under a building permit; or
 - (ii) without delay after it is made, if the essential safety measure is required under an emergency order or a building order under Part 8 of the Act; and

- (c) be given to the relevant council with a report under section 120(2)(a) of the Act, if the essential safety measure is required under an emergency order or a building order under Part 8 of the Act.

216 Owner must comply with maintenance determination

- (1) This regulation applies if a maintenance determination is issued in relation to a building or place of public entertainment to which an occupancy permit does not apply.
- (2) The owner of the building or place of public entertainment must ensure that each essential safety measure that is the subject of a maintenance determination in relation to that building or place—
 - (a) performs at the level to fulfil its purpose specified in the maintenance determination; and
 - (b) is inspected, tested and maintained in accordance with the requirements specified in the maintenance determination.

Penalty: 20 penalty units.

217 Compliance with AS 1851—2012 taken to be compliance with earlier standards

- (1) This regulation applies in relation to a maintenance determination that specifies the frequency and type of inspection, testing and maintenance required for an essential safety measure in a building or place of public entertainment.
- (2) Despite regulation 216, if a maintenance determination specifies that the essential safety measure must be maintained in accordance with AS 1851—2005 Maintenance of fire protection

systems and equipment published on 5 September 2005, as in force and as issued from time to time, or an equivalent standard published before 5 September 2005, compliance with AS 1851—2012 is taken to be compliance with the frequency and type of inspection, testing and maintenance requirements specified in the maintenance determination (if applicable).

- (3) If the owner of the building or place of public entertainment, in accordance with subregulation (2), complies with AS 1851—2012 in relation to the essential safety measure, instead of the frequency and type of inspection, testing and maintenance required for the essential safety measure specified in the maintenance determination, the owner must continue to comply with AS 1851—2012 in relation to the essential safety measure.

Subdivision 3—Maintenance schedules

218 Relevant building surveyor must prepare or update maintenance schedule for an existing building or place of public entertainment

- (1) This regulation applies if an essential safety measure is required to be provided or altered in a building or place of public entertainment by—
 - (a) a condition on an occupancy permit imposed in accordance with regulation 195; or
 - (b) a maintenance determination under regulation 215.
- (2) The relevant building surveyor must prepare or update a maintenance schedule so that it complies with regulation 222 in relation to the building or place of public entertainment.

- (3) The owner of a building or place of public entertainment must provide to the relevant building surveyor who must prepare or update a maintenance schedule under subregulation (2) relating to that building or place all the documents referred to in regulation 225 that relate to essential safety measures in the building or place within 7 days after a request of the relevant building surveyor to provide those documents.

Penalty: 10 penalty units.

219 Owner of building or place of public entertainment may apply for maintenance schedule

- (1) The owner of a building or place of public entertainment may apply to the municipal building surveyor or a private building surveyor to request the municipal building surveyor or private building surveyor to prepare a maintenance schedule that complies with regulation 222 in relation to the building or place.
- (2) If the municipal building surveyor or a private building surveyor agrees to prepare a maintenance schedule that complies with regulation 222 in relation to a building or place of public entertainment, the owner of the building or place must provide to the municipal building surveyor or private building surveyor all documents referred to in regulation 225 relating to essential safety measures in the building or place.

220 Building surveyor may prepare maintenance schedule

The municipal building surveyor or a private building surveyor may prepare a maintenance schedule in relation to a building or place of public entertainment that complies with regulation 222 if the owner of the building or place has applied in accordance with